

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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JUSTIN CROOK, TYRONE JOHNSON &
SADE CLARK,

Plaintiffs,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, LIEUTENANT MICHAEL
DOYLE (Tax #917072), SERGEANT CHARLES
SCHWARTZ (Tax # 947478) and POLICE OFFICERS
JOHN DOE I-20,

The plaintiffs reside at:
Kings County, New York

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
June 7, 2016

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

JUSTIN CROOK, TYRONE JOHNSON &
SADE CLARK,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, LIEUTENANT MICHAEL
DOYLE (Tax #917072), SERGEANT CHARLES
SCHWARTZ (Tax # 947478) and POLICE OFFICERS
JOHN DOE 1-20,

Defendants.

-----X

JUSTIN CROOK, TYRONE JOHNSON & SADE CLARK (hereinafter "plaintiffs"), by
their attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the
defendants THE CITY OF NEW YORK, LIEUTENANT MICHAEL DOYLE (Tax
#917072), SERGEANT CHARLES SCHWARTZ (Tax # 947478) and POLICE
OFFICERS JOHN DOE 1-20 (collectively referred to as "the defendants"), upon
information and belief, allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiffs under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiffs by the Fourth, Fifth and Fourteenth
Amendments to the Constitution of the United States, and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the law and
statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, plaintiffs were, and they still
are, residents of the City of New York, who at all times material and
relevant to this complaint resided, and still reside, in Kings County,
City and State of New York.

3. At all relevant times, defendants LIEUTENANT MICHAEL DOYLE (Tax #917072), SERGEANT CHARLES SCHWARTZ (Tax # 947478) and POLICE OFFICERS JOHN DOE 1-20 (collectively referred to as "defendant officers"), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiffs sue all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on July 23, 2015, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or his/her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Justin Crooks' claim was assigned Claim No.

2015PI021830. Plaintiff Tyrone Johnson's claim was assigned Claim No. 2015PI021831. Plaintiff Sade Clark's claim was assigned Claim No. 2015PI021832.

8. At least thirty days have elapsed since the service of the above-mentioned notices of claim, and adjustment or payment of the claims have been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

FACTUAL ALLEGATIONS

10. On or about June 17, 2015, at approximately 06:00 a.m., within the plaintiffs' residence described as 585 Blake Avenue, #2B, Brooklyn, N.Y. 11207 ("subject premises") the defendant officers forcibly entered into the subject premises.
11. Following their forced entry into the subject premises, the defendant officers informed the occupants, including the plaintiffs, that they were executing an arrest warrant for Tyree Johnson, the son of the plaintiff Tyrone Johnson, and the younger brother of the plaintiff Justin Crooks.
12. After Tyree Johnson was apprehended by the defendant officers, said officers conducted an unlawful search of the subject premises, despite the fact that they did not have a search warrant that permitted them to do so.
13. At that juncture the plaintiff Justin Crooks asked the defendant officers why they were searching the subject premises when they had already apprehended the subject of the search warrant, following which the defendant officers then started to leave the subject premises.
14. That the plaintiff Justin Crook's mother followed the defendant officers out of the subject premises, in a bid to determine where they were taking her son (Tyree Johnson).

15. That as the plaintiff Justin Crook was headed out of the subject premises to get his younger sister (who had followed the mother out of the subject premises), he was viciously attacked by the defendant officers, who proceeded to punch and batter him on the head, body and limbs.
16. That as the plaintiff Tyrone Johnson (who suffers from epilepsy) protested at the assault that was perpetrated on his son (Justin Crooks), he was also punched and battered on the head and body by the defendant officers.
17. That as the plaintiff Sade Clark (who is the girlfriend of the plaintiff Justin Crooks, and was pregnant at the time) attempted to prevent the attack on Justin Crooks, she was punched and battered also.
18. That following the attack, the plaintiffs Justin Crooks and Tyrone Johnson were arrested and taken to a precinct, where they were processed, or otherwise fingerprinted and photographed.
19. That the plaintiff Tyrone Johnson was subsequently released from the precinct at approximately 04:00 p.m. on June 17, 2015, after having been issued with a Desk Appearance Ticket ("DAT"), wherein he was accused, *inter alia*, of disorderly conduct. The DAT was issued by defendant Sergeant Charles Schwartz. The plaintiff Tyrone Johnson's arrest number was K15645246-Y.
20. That the plaintiff Justin Crooks was subsequently arraigned in front of a Kings County Criminal Court Judge on June 18, 2015, at approximately 12:45 a.m., upon charges of Disorderly Conduct, Resisting Arrest and Obstruction of Governmental Administration, and released upon his own recognizance. The criminal complaint was signed by defendant Sergeant Charles Schwartz, who alleged therein that defendant Lieutenant Michael Doyle had made certain allegations against the plaintiffs Justin Crooks and Tyrone Johnson to him.

21. The criminal cases against the plaintiffs Justin Crook and Tyrone Johnson were each adjourned in contemplation of dismissal, and have subsequently been dismissed.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS: UNLAWFUL
SEARCH UNDER 42 U.S.C § 1983

22. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.
23. Prior to and following the plaintiffs arrests, the defendants searched and/or caused the plaintiffs and/or his/her/their property to be searched, without any individualized reasonable suspicion that the plaintiffs were concealing weapons or contraband.
24. As a result of the foregoing, the plaintiffs was/were subjected to an illegal and improper searches.
25. The foregoing unlawful search violated the plaintiffs constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION ON BEHALF OF THE PLAINTIFFS JUSTIN CROOKS AND
TYRONE JOHNSON: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42
U.S.C § 1983/NEW YORK STATE LAW

26. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.
27. The above-described respective arrest, detention and imprisonment of the plaintiffs Justin Crooks and Tyrone Johnson by the defendant officers was/were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiffs Justin Crooks and Tyrone Johnson arrest(s) or subsequent detention(s).
28. As a result of the plaintiffs Justin Crooks and Tyrone Johnson above-described false arrest(s) and detention(s) by the defendant officers,

the plaintiffs Justin Crooks and Tyrone Johnson have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him/them, was/were prevented from attending to his/their necessary affairs, and have been caused to incur legal expenses, and have been otherwise damaged in his/their character and reputation.

29. Consequently, the plaintiffs Justin Crooks and Tyrone Johnson have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

30. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.

31. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS AGAINST THE
DEFENDANTS SERGEANT CHARLES SCHWARTZ AND LIEUTENANT
MICHAEL DOYLE: EXCESSIVE FORCE UNDER 42 U.S.C § 1983

32. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 31 of this complaint as though fully set forth herein.

33. The level of force employed against the plaintiffs by the defendant officers was objectively unreasonable and in violation of each of said plaintiff's constitutional rights.

34. As a result of the aforementioned conduct of the defendants, each plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS JUSTIN CROOKS
AND TYRONE JOHNSON AGAINST THE DEFENDANTS SERGEANT CHARLES
SCHWARTZ AND LIEUTENANT MICHAEL DOYLE: DENIAL OF A
CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO
THE FABRICATION OF EVIDENCE

35. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 34 of this complaint as though fully set forth herein.
36. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle fabricated evidence and/or created false evidence against the plaintiffs Justin Crooks and Tyrone Johnson.
37. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle forwarded fabricated and false evidence/false information to the prosecutors in the Kings County District Attorney's office.
38. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle misrepresented and falsified evidence throughout all phases of the criminal proceeding.
39. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
40. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
41. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
42. By creating false evidence against the plaintiffs Justin Crooks and Tyrone Johnson; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in the plaintiffs Justin Crooks and Tyrone Johnson being deprived of their liberty, the defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle violated the plaintiffs Justin Crooks and Tyrone Johnson's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.

43. As a consequence of the defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle's actions, the plaintiffs Justin Crooks and Tyrone Johnson suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and their constitutional rights were violated.
44. The plaintiffs Justin Crooks and Tyrone Johnson hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle, individually and severally.
45. The defendants Sergeant Charles Schwartz and Lieutenant Michael Doyle were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
46. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF ALL PLAINTIFFS: FAILURE TO
INTERVENE UNDER 42 U.S.C § 1983

47. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 46 of this complaint as though fully set forth herein.
48. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his/her constitutional rights, as more fully set forth above.
49. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his/her constitutional rights, despite having had a realistic and reasonable opportunity to do so. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his/her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive

damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS: ASSAULT AND BATTERY

50. Each plaintiff repeats and realleges paragraphs 1 through 49 as if each paragraph is repeated verbatim herein.
51. At the time of the incident, the plaintiffs did not challenge nor resist the defendants, nor engage in any threatening behavior towards the defendants.
52. However, as set forth above, the defendants assaulted the plaintiffs, battered the plaintiffs, and subjected the plaintiffs to excessive force and summary punishment.
53. Consequently, the plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
54. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
55. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
June 7, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
JUSTIN CROOK, TYRONE JOHNSON &
SADE CLARK,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, LIEUTENANT MICHAEL
DOYLE (Tax #917072), SERGEANT CHARLES
SCHWARTZ (Tax # 947478) and POLICE OFFICERS
JOHN DOE 1-20,

Defendants.

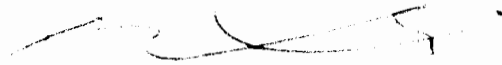
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
June 7, 2016

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS Index No.:

JUSTIN CROOK, TYRONE JOHNSON & SADE CLARK,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, LIEUTENANT MICHAEL DOYLE (Tax
#917072), SERGEANT CHARLES SCHWARTZ (Tax # 947478) and
POLICE OFFICERS JOHN DOE 1-20,
Defendant(s) .

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200__

Attorneys for Defendant(s)
